

STATE OF NEW YORK

2447--A

Cal. No. 73

2025-2026 Regular Sessions

IN ASSEMBLY

January 17, 2025

Introduced by M. of A. LEVENBERG, YEGER, GONZALEZ-ROJAS, SHIMSKY, CHANG, GRIFFIN, SAYEGH, KASSAY, OTIS -- read once and referred to the Committee on Corporations, Authorities and Commissions -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public service law, in relation to requiring corporations and municipalities to notify property owners prior to beginning certain services

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public service law is amended by adding a new section 119-e to read as follows:

§ 119-e. Notification of work. 1. Prior to beginning any non-emergency construction or other work for which a utility has a valid permit and reasonably believes will directly and materially impact the use of residential, commercial or other property, such utility shall provide notice of such work. For purposes of this section, the term "utility" shall include: a gas corporation, an electric corporation, a gas and electric corporation, a water corporation, a steam corporation, a telegraph corporation, a telephone corporation or a municipality rendering equivalent utility services. Such notice shall be provided to customers the utility reasonably believes will be directly and materially impacted by such work.

2. Such notice shall include, but not be limited to, a description of the work to be performed, the expected duration of such work, the location of such work, any road closures or detours that may occur due to such work, any action that may directly and materially impact the use of such property, and the contact information for the utility performing such work. Such notice may include electronic communications, signage, and written materials.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 3. Such notice shall be given as far in advance as practicable before
2 the start of work but not more than thirty days in advance of the start
3 of such work.

4 4. The provisions of this section shall not apply in the case of a
5 natural or man-made disaster or state of emergency pursuant to article
6 two-B of the executive law, or where the need to provide such notice
7 would prevent the timely installation, restoration or repair of a utili-
8 ty customer's service. Compliance by a utility with section 19-159.6 of
9 the administrative code of the city of New York, shall be deemed
10 compliance with this section.

11 § 2. This act shall take effect on the ninetieth day after it shall
12 have become a law. Effective immediately, the addition, amendment
13 and/or repeal of any rule or regulation necessary for the implementation
14 of this act on its effective date are authorized to be made and
15 completed on or before such effective date.